

Opinion of the Court

Justice Powell’s dual-track theory of incorporation was already foreclosed in 1972, some at that time still argued that it might have a role to play outside the realm of criminal procedure. Since then, the Court has held otherwise.⁶² Until recently, dual-track incorporation attracted at least a measure of support in dissent. But this Court has now roundly rejected it.⁶³ Nor has the plurality’s rejection of the Sixth Amendment’s historical unanimity requirement aged more gracefully. As we’ve seen, in the years since *Apodaca*, this Court has spoken inconsistently about its meaning—but nonetheless referred to the traditional unanimity requirement on at least eight occasions.⁶⁴ In light of all this, calling *Apodaca* an outlier would be perhaps too suggestive of the possibility of company.

When it comes to reliance interests, it’s notable that neither Louisiana nor Oregon claims anything like the prospective economic, regulatory, or social disruption litigants seeking to preserve precedent usually invoke. No one, it seems, has signed a contract, entered a marriage, purchased a home, or opened a business based on the expectation that, should a crime occur, at least the accused may be sent away by a 10-to-2 verdict.⁶⁵ Nor does anyone suggest that nonunanimous verdicts have “become part of our national culture.”⁶⁶ It would be quite surprising if they had, given that nonunani-

⁶² *McDonald*, 561 U.S., at 765–766.

⁶³ *Timbs*, 586 U.S., at 150. Contrary to the dissent’s suggestion, this Court’s longstanding rejection of dual-track incorporation does not necessarily imply that the Fourteenth Amendment renders the entire Bill of Rights applicable to the States. See *post*, at 156–157. The scope of an incorporated right and whether a right is incorporated at all are two different questions. See *Timbs*, 586 U.S., at 150 (“[I]f a Bill of Rights protection is incorporated, there is no daylight between the federal and state conduct it prohibits or requires”).

⁶⁴ See n. 35, *supra*.

⁶⁵ Cf. *Leegin Creative Leather Products, Inc. v. PSKS, Inc.*, 551 U.S. 877, 925–926 (2007) (BREYER, J., dissenting).

⁶⁶ *Dickerson v. United States*, 530 U.S. 428, 443 (2000).